

IN THE SENATE

SENATE BILL NO. 1329

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO WEIGHTS AND MEASURES; AMENDING SECTION 71-234, IDAHO CODE, TO
PROVIDE FOR CASH ROUNDING; AND DECLARING AN EMERGENCY AND PROVIDING AN
EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 71-234, Idaho Code, be, and the same is hereby
amended to read as follows:

71-234. MISREPRESENTATION OF PRICE PROHIBITED -- FRACTIONS OF CENTS
-- CASH ROUNDING. (1) Whenever any commodity or service is sold, or is of-
fered, exposed, or advertised for sale, by weight, measure, or count, the
price shall not be misrepresented, nor shall the price be represented in any
manner calculated or tending to mislead or deceive an actual or prospective
purchaser.

(2) Whenever an advertised, posted, or labeled price per unit of
weight, measure, or count includes a fraction of a cent, all elements of the
fraction shall be prominently displayed and the numeral or numerals express-
ing the fraction shall be immediately adjacent to, of the same general design
and style as, and at least one-half (1/2) the height and width of the numerals
representing the whole cents.

(3) (a) Notwithstanding any other provision of law to the contrary,
whenever any service or any commodity, good, product, or other item of
value, whether tangible or intangible, is sold, leased, rented, li-
censed, or otherwise provided in a transaction, and payment is tendered
in cash, if a seller is unable to round the cash transaction to the near-
est whole cent using denominations of United States coin or currency in
circulation, the seller may round either the total amount due for the
transaction, or the amount of change due back to the purchaser, to the
nearest multiple of five cents (5¢) as follows:

(i) If the final digit of such amount is 1, 2, 6, or 7, the amount
shall be rounded down to the nearest multiple of five cents (5¢);
and

(ii) If the final digit of such amount is 3, 4, 8, or 9, the amount
shall be rounded up to the nearest multiple of five cents (5¢).

(b) Payment tendered through electronic, card, check, or other non-
cash means shall be settled to the exact amount.

(c) For the purposes of this subsection, "total amount due" means the
sum of the total price plus any applicable taxes, fees, or other charges
calculated to the nearest cent. Taxes shall be computed based on the to-
tal price before any rounding occurs under this subsection.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.